



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2279: commercial river outfitters; limited liability

WAY FLOOR AMENDMENT

1. Removes language granting a commercial river outfitter an exemption from liability for an injury to or death of a participant arising from an inherent risk of a river trip in the Grand Canyon National Park.
2. Adds that the commercial river outfitters immunity from claims for injury or death that arise out of the inherent risk of a river trip do not apply if:
 - a. the outfitter knows or should have known that a hazardous condition exists; and
 - b. the outfitter fails to disclose the hazardous condition to the participant.

WAY FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2279
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 12, chapter 5, article 3, Arizona Revised
3 Statutes, is amended by adding section 12-558.04, to read:

4 12-558.04. Limited liability; commercial river outfitters;
5 exceptions; definitions

6 A. ~~[EXCEPT AS PROVIDED IN SUBSECTION C OF THIS SECTION, A~~
7 ~~COMMERCIAL RIVER OUTFITTER IS NOT LIABLE FOR AN INJURY TO OR THE DEATH OF~~
8 ~~A PARTICIPANT ARISING FROM AN INHERENT RISK OF A RIVER TRIP IN GRAND~~
9 ~~CANYON NATIONAL PARK.]~~ A COMMERCIAL RIVER OUTFITTER DOES NOT HAVE A DUTY
10 TO ALTER, ELIMINATE, CONTROL OR DECREASE THE INHERENT RISKS OF
11 PARTICIPATING IN A RIVER TRIP IN GRAND CANYON NATIONAL PARK. THE INHERENT
12 RISKS OF A RIVER TRIP MAY BE CONTRACTUALLY IDENTIFIED BY THE COMMERCIAL
13 RIVER OUTFITTER AND A PARTICIPANT IN A RIVER TRIP[.] AND THE
14 IDENTIFICATION OF INHERENT RISKS SHALL BE DETERMINATIVE AND
15 BINDING. COMMERCIAL RIVER OUTFITTERS ARE IMMUNE FROM CLAIMS FOR INJURY OR
16 DEATH THAT ARISE OUT OF THE INHERENT RISKS OF A RIVER TRIP BUT ARE NOT
17 IMMUNE FROM CLAIMS ARISING OUT OF OTHER CIRCUMSTANCES[. EXCEPT AS PROVIDED
18 IN SUBSECTION B OF THIS SECTION].

19 B. EXCEPT AS PROVIDED IN SUBSECTION C OF THIS SECTION, A PERSON MAY
20 VOLUNTARILY RELEASE A COMMERCIAL RIVER OUTFITTER FROM LIABILITY FOR AN
21 INJURY TO OR THE DEATH OF A PERSON RESULTING FROM PARTICIPATION IN A RIVER
22 TRIP IN GRAND CANYON NATIONAL PARK. A COMMERCIAL RIVER OUTFITTER IS
23 IMMUNE FROM CLAIMS ARISING OUT OF ORDINARY NEGLIGENCE ONLY IF THE CLAIMS
24 ARE CONTRACTUALLY WAIVED IN A LIABILITY RELEASE.

25 C. SUBSECTIONS A AND B OF THIS SECTION DO NOT APPLY TO A COMMERCIAL
26 RIVER OUTFITTER THAT IS GROSSLY NEGLIGENT OR THAT COMMITS WILFUL, WANTON
27 OR INTENTIONAL ACTS OR OMISSIONS.

1 [D. SUBSECTION A OF THIS SECTION DOES NOT APPLY TO A COMMERCIAL
2 RIVER OUTFITTER IF BOTH OF THE FOLLOWING APPLY:]

3 1. THE COMMERCIAL RIVER OUTFITTER KNOWS OR SHOULD HAVE KNOWN THAT A
4 HAZARDOUS CONDITION EXISTS.

5 2. THE COMMERCIAL RIVER OUTFITTER FAILS TO DISCLOSE THE HAZARDOUS
6 CONDITION TO A PARTICIPANT.]

7 ~~[D.]~~[E.] FOR THE PURPOSES OF THIS SECTION:

8 1. "COMMERCIAL RIVER OUTFITTER":

9 (a) MEANS AN ENTITY THAT IS ALLOWED UNDER FEDERAL LAW TO PROVIDE
10 RIVER TRIPS TO THE PUBLIC IN GRAND CANYON NATIONAL PARK.

11 (b) INCLUDES EMPLOYEES OF A COMMERCIAL RIVER OUTFITTER WHO ARE
12 ACTING IN THE COURSE AND SCOPE OF THEIR EMPLOYMENT.

13 2. "RIVER TRIP" MEANS ALL OF THE ACTIVITIES OR OCCURRENCES, WHETHER
14 TAKING PLACE ON WATER OR LAND, FOR WHICH THE COMMERCIAL RIVER OUTFITTER
15 HAS AGREED TO PROVIDE OUTFITTING OR GUIDING SERVICES.

16 Enroll and engross to conform

17 Amend title to conform

MICHAEL WAY

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